

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Filed:

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RAFAEL TATIS,

Index No.

Plaintiff,

SUMMONS

-against-

Plaintiff designates
Bronx County as the place
of trial.

THE CITY OF NEW YORK, COMMISSIONER
DERMOT SHEA IN HIS OFFICIAL CAPACITY,
CAPTAIN JAMES HYNES, Individually, CAPTAIN
RAFFAELE PETTI, Individually, SERGEANT
KEVIN LYNCH, Individually

The basis of the venue is
where the tort arose and
where Plaintiff resides.

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your Answer, or if the complaint is not served with the summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service, (or within thirty (30) days after service is complete, if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded hereto.

Dated: New York, New York
February 22, 2021

Yours, etc.

John Scola
Law Office of John A. Scola, PLLC
Attorneys for the Plaintiff Rafael
Tatis
90 Broad Street, 10th Floor
New York, NY 10004
(917) 423-1445

DEFENDANTS ADDRESS:

Corporation Counsel of the City
Of New York
100 Church Street
New York, NY 10007

Police Commissioner Dermot Shea
One Police Plaza
New York, NY 10038

Captain James Hynes
257 Alexander Avenue
Bronx, NY 10457

Captain Raffaele Petti
2121 Eastchester Rd
Bronx, NY 10461

Sergeant Kevin Lynch
450 Cross Bronx Expressway
Bronx, NY 1045

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Filed:

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RAFAEL TATIS,

Index No.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, COMMISSIONER
DERMOT SHEA IN HIS OFFICIAL CAPACITY,
CAPTAIN JAMES HYNES, Individually, CAPTAIN
RAFFAELE PETTI, Individually, SERGEANT
KEVIN LYNCH, Individually

JURY DEMAND

Defendants.

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Plaintiff, RAFAEL TATIS, by his attorneys, Law Office of John A. Scola, PLLC,
respectfully alleges upon information and belief as follows:

1. This is an action at law to redress the deprivation of rights secured to the plaintiff.
RAFAEL TATIS under color of statute, ordinance, regulation, custom, and or to
redress the deprivation of rights, privileges, and immunities secured to the plaintiffs
by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution
of the United States, and by Title 42 U.S.C. § 1983 [and § 1985], [and arising under
the law and statutes of the State of New York].
2. This is an action to further seek compensation for the serious and permanent
personal injuries sustained by the plaintiffs, as a result of the negligence of the
defendants, perpetrated while said defendant officers were in the process of
illegally and unlawfully arresting plaintiffs.
3. At all times mentioned, Plaintiff RAFAEL TATIS, was and is a resident of Bronx
County, in the City and State of New York.

4. At all times mentioned, the CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
5. Upon information and belief, at all times mentioned, Defendants POLICE COMMISSIONER DERMOT SHEA IN HIS OFFICIAL CAPACITY, CAPTAIN JAMES HYNES, Individually, CAPTAIN RAFFAELE PETTI, Individually and SERGEANT KEVIN LYNCH, Individually were and are police officers of the Defendant CITY OF NEW YORK , and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

PARTIES

6. Plaintiff Rafael Tatis is a residents of the State of New York, County of Bronx.
7. The Defendant, CITY OF NEW YORK is a municipality in the State of New York and employs the Defendant Officers.
8. The Defendant POLICE COMMISSIONER DERMOT SHEA IN HIS OFFICIAL CAPACITY, is an employee and Police Commissioner of the New York City Police Department and the Defendant CITY OF NEW YORK.
9. Defendant CAPTAIN JAMES HYNES is an employee New York City Police Department and the Defendant CITY OF NEW YORK.
10. Defendant CAPTAIN RAFFAELE PETTI is an employee New York City Police Department and the Defendant CITY OF NEW YORK.
11. Defendant SERGEANT KEVIN LYNCH is an employee New York City Police Department and the Defendant CITY OF NEW YORK.

FACTUAL ALLEGATIONS

12. At all times herein, Plaintiff is a police officer for the New York City Police Department (“NYPD”).
13. Plaintiff joined the NYPD in January 2009.
14. Plaintiff was promoted to Detective in June, 2016.
15. Plaintiff arrived home on August 23, 2018 at approximately 5:00 am.
16. Plaintiff had been out for nearly 24 hours prior as he attended a soccer game after his tour ended the previous day.
17. A civilian, Sean Husted was allegedly awoken by the accident and called 911 around 5:15 am complaining that someone had struck his vehicle.
18. Husted states on the 911 call that a black car had struck his vehicle. He then states to have seen a person park their car down the street, casually exit and lock their car with a key fob.
19. Husted further states on the 911 call that the person he saw exit the vehicle as possibly Hispanic, short with curly hair, and wearing a dark sweatshirt.
20. Plaintiff, is Hispanic, 6’1” tall and was wearing a cream colored t-shirt.
21. Husted never saw the actual accident despite making this report.
22. Husted proceeds to get dressed goes downstairs.
23. Husted walks down the street and identifies a black vehicle that may have been the one involved in the alleged accident.
24. This car had a NYPD placard and was in fact Plaintiff’s vehicle.
25. NYPD Police Officers Pitvatchai Jetjonlong and Jonathan Manzueta responded to the scene at 5:30 am.

26. The police officers on the scene called a supervising lieutenant, Defendant JAMES HYNES who responded to the scene.
27. Upon arrival of the Defendant HYNES, the officers began investigating the complaint.
28. Defendant HYNES concludes Plaintiff was the person involved in this alleged accident.
29. The officers discovered no damage to either Plaintiff's vehicle nor Husted's.
30. There was no broken glass, dents, blood and the air bags of either vehicle were not deployed.
31. The officers canvassed the area and spoke with Plaintiff's doorman who stated that he had seen Plaintiff who said hello to him and appeared "normal" when he entered his building.
32. Defendant HYNES reviewed the video footage of Plaintiff entering his residential building.
33. The Defendants admit that Plaintiff looked visibly fine and did not appear intoxicated when he entered his residential building.
34. The police officers proceed to knock on Plaintiff's door but Plaintiff, who was sleeping near an air conditioner, did not hear the knock nor answer the door.
35. Defendant HYNES is then called Defendant PETTI.
36. Defendant PETTI responds to the scene at 7:45 am.
37. Defendant PETTI then calls Defendant LYNCH who responds to the scene.
38. Defendants HYNES and LYNCH, over the course of two hours while at the scene, did not believe a wellness check is needed of Plaintiff related to the minor alleged

- vehicle accident and no action is taken.
39. Upon arriving on the scene, Defendant PETTI, 3 hours after the alleged hit and run), decides that a wellness check must be performed on Plaintiff.
40. The Defendants herein then informed the doorman of Plaintiff's building that they believed Plaintiff to be injured and needed to perform a wellness check on Plaintiff.
41. The doorman of Plaintiff's building, fearing for the safety of Plaintiff, provided the Defendants herein with a key to Plaintiff's apartment.
42. Plaintiff never consented the unlawful entering of his property and never authorized the Doorman to allow the Defendants to enter.
43. The Defendants did not have a warrant nor probable cause to enter Plaintiff's apartment.
44. Nevertheless, the Defendants then entered Plaintiff's apartment unlawfully.
45. The Defendant's claims of a need to enter Plaintiff's residence for a wellness check is pretextual to gain unlawful entry into Plaintiff's residence.
46. Plaintiff awoke to the sound of footsteps and radios in his living room causing him to get up out of his bed to see who entered his premises.
47. Plaintiff found Defendants HYNES, PETTI, LYNCH and police officer JetJomLong in his living room.
48. The Defendants immediately began interrogating Plaintiff.
49. Defendants HYNES and PETTI claim in later paperwork that they smell the faint smell of alcohol on Plaintiff's breath and one officer claims Plaintiff looks dazed and confused.
50. Despite claiming that Plaintiff appeared dazed and confused and claiming that the

- Defendants needed to enter Plaintiff's premises to perform a wellness check on him, no ambulance or medical professional is called to assist Plaintiff.
51. The Defendants failure to even check Plaintiff for any injury shows that the cover of a wellness check was simply a guise for unlawful entry into Plaintiff's apartment.
52. Plaintiff is subsequently arrested for Driving while Intoxicated and leaving the scene of an accident.
53. At 9:19 am, Husted is questioned by Defendants LYNCH and PETTI.
54. Husted, who claims to have seen a person exit his vehicle casually and lock his car with a key fob, only had one look at the person he claims struck his vehicle from the 7th story of his building before sunrise.
55. The initial general description of the person given by Husted is memorialized in his 911 call as previously described.
56. After speaking with Defendants LYNCH and PETTI, Husted proceeds to give a detailed description of the person he saw.
57. Husted, 5 hours later, could now give a detailed description of Plaintiff down to the color of the shirt he was wearing after he got dressed as a result of the unlawful entry.
58. Upon information and belief, Defendants LYNCH and PETTI coerced Husted into changing the description of the person who allegedly hit his vehicle to match what Plaintiff was wearing at the time he was falsely arrested.
59. Plaintiff is then taken to the 45th Precinct.
60. At 10:06 (225 minutes after the alleged hit and run) Plaintiff refuses to take a breathalyzer test at the precinct.

61. Plaintiff is sent through Central Booking.
62. At approximately 12:00 pm, Husted is shown a photo array which includes Plaintiff's photo.
63. Husted is unable to identify Plaintiff as the man who hit his vehicle.
64. Defendants HYNES and PETTI each prepare "fitness for duty reports" to attempt to justify their unlawful entry into Plaintiff's residence.
65. Defendant HYNES states in his report that he smelled a moderate amount of alcohol on Plaintiff.
66. Defendant PETTI states in his report that there is a faint smell of alcohol on Plaintiff.
67. It is later discovered by Plaintiff during Brady disclosures that Defendant LYNCH had told the Defendant Bronx County District Attorney's Office that he could not smell alcohol on Plaintiff at the time he was arrested.
68. Nevertheless, Plaintiff is arraigned at 9:00 pm on the charges and is released on his own recognizance.
69. Plaintiff is suspended without pay by the NYPD as a result of his arrest for thirty two (32) days.
70. Plaintiff spends \$5,000 on the retention of a criminal attorney.
71. Plaintiff appears for the criminal matter in September and then again in November before the matter is dismissed and sealed by the Bronx County District Attorney's Office on November 29, 2018.
72. On January 16, 2019, a hearing was held at the New York State Department of Motor Vehicles related to Plaintiff's refusal to take a breathalyzer following his

arrest.

73. The Administrative Law Judge at the DMV determined that Plaintiff committed no wrong doing in refusing to take the breathalyzer and immediately dismisses the action against Plaintiff, restoring his license.
74. Following the incident, Plaintiff filed a complaint with the Civilian Complaint Review Board against the Defendants herein.
75. During the investigation of this complaint, Defendant PETTI lied to Inspector Benjamin, who was conducting the CCRB investigation, by stating that Plaintiff consented to letting the Defendants into his residence.
76. Defendant PETTI lied about the means of entrance during this investigation in an effort to mislead investigators and distract from the Defendants unconstitutional actions.
77. This lie by Defendant PETTI is documented on the DD5 prepared by Inspector Benjamin during the course of his investigation.
78. In internal NYPD hearings, Defendant HYNES admits that he did not believe they had the requisite exigent circumstances to enter Plaintiff's apartment.
79. When asked specifically what Defendant HYNES was doing while waiting for Defendant PETTI to respond, he responds by stating "I was sitting there doing nothing."
80. Plaintiff is demoted from Detective to Police Officer in May 2019 as a result of the unlawful arrest described herein.
81. As a result of this demotion, Plaintiff loses approximately \$15,000 per year in base salary.

82. As a result of this demotion, Plaintiff lost and continues to lose approximately 200 hours of overtime per year.
83. As a result of this demotion, Plaintiff has lost significant pension benefits the losses of which will continue until Plaintiff's death.
84. The economic losses stemming from the unlawful arrest of Plaintiff are not limited to his demotion.
85. Following Plaintiff's demotion, Plaintiff was brought up on internal charges related to his false arrest.
86. Plaintiff is served with internal charges and specifications on June 25, 2019.
87. The NYPD charges are for the same offenses that were dismissed in criminal court, specifically, drunk driving, leaving the scene of an accident, refusing to take a breathalyzer test and other internal charges.
88. Plaintiff is forced to hire an attorney to defend against these internal charges which costs him \$7,500.
89. Plaintiff is also forced to incur the expense of 18 weeks of forced alcohol counseling which totals \$1,260.
90. Plaintiff had previously passed the sergeants promotional examination which placed him on the list of candidates to be promoted to sergeant in the NYPD.
91. Starting in July, 2019 and continuing to the present date, Plaintiff has been repeatedly passed over for promotion to sergeant related to the false arrest described herein.
92. A NYPD Administrative trial was held on September 17, 2020, September 18, 2020 and October 8, 2020.

93. During this trial, testimony was given by each of the named Defendants as well as several other witnesses.
94. Numerous discrepancies were testified to by the named Defendants.
95. Inspector Benjamin testifies that Defendant PETTI had in fact lied to him about the means of entrance into Plaintiff's residence.
96. Defendant LYNCH testified that when he arrived on the scene Plaintiff's vehicle was entangled with Husted's.
97. This directly conflicts with the 911 call of Husted and the testimony of Defendant HYNES at the Department of Motor Vehicle hearing wherein he testified that Husted did not actually see the accident and saw a vehicle driving down the street after he heard a bang.
98. Nevertheless, Defendant LYNCH testified that he personally observed the vehicles stuck together when he arrived on the scene.
99. Defendant LYNCH testified in the internal hearing that he smelled the strong scent of alcohol on Plaintiff's breath, was weaving and unsteady on his feet when he unlawfully entered Plaintiff's residence.
100. These alleged observations were never documented in any way by Defendant LYNCH and were heard for the first time during Plaintiff's administrative trial.
101. This directly conflicts with Defendant LYNCH'S statement to the Bronx County District Attorney's Office which was given on the date of the alleged incident.
102. The Bronx District Attorney's Office report states "Sgt. Kevin Lynch of Bronx Investigations informed the Bronx District Attorney's office that he did not smell alcohol emanating from Rafael Tatis."

103. Defendant PETTI also perjured himself at the department trial.
104. Defendant PETTI testified that the Complainant (Husted), “was a smoker, having a cigarette and looking out the window” at the time of the accident.
105. Further Defendant PETTI states that Husted “informed him that he witnessed his care that was parked be hit by a black car” and that the “operator of the vehicle ended up exiting the vehicle and stumbled away.”
106. The testimony of Defendant PETTI is completely fabricated and is not reflected in the 911 call of Husted and directly contradicts the other defendants’ testimony, NYPD documents, reports, video evidence and Husted’s other recorded statements.
107. The word stumbled is never used by any other witness or person involved in this matter.
108. The only other time that it was stated that Plaintiff “stumbled” was in a New York Daily News story about his arrest dated August 24, 2018.
109. Upon information and belief, Defendant PETTI leaked the news story to the Daily News that Plaintiff was arrested further causing him economic and emotional harm.
110. Defendant PETTI further states in his sworn testimony that the Defendants knocked on Plaintiff’s door for 10-15 minutes before they entered his residence unlawfully.
111. Defendant LYNCH’s testimony was that the Defendants only knocked for thirty seconds before entering.
112. Defendant HYNES testifies at the Department Trial that he determined there was not a sufficient reason or need to enter Plaintiff’s residence.
113. Defendant HYNES further testifies that he despite believing that there was no lawful reason to enter the premises, he deferred to Defendant PETTI’s judgment

call.

114. When asked about his previous testimony that there was not sufficient grounds to enter Plaintiff's residence at the trial, he again states that he "wanted to give Captain Petti the respect to arrive on the scene."
115. Defendant HYNES, despite knowing that the entry into Plaintiff's residence was unlawful, failed to stop Defendant PETTI from entering Plaintiffs residence unlawfully.
116. The Defendants herein repeatedly have committed perjury in an effort to justify Plaintiff's false arrest, warrantless entrance into Plaintiff's residence and subsequent deprivation of Plaintiff's constitutional rights.
117. Assistant Deputy Commissioner- Trials, Honorable Paul M. Gamble, an employee of the NYPD, rendered a decision on October 26, 2020.
118. Despite the clear discrepancies in testimony, Gamble ruled against Plaintiff docking him an additional 23 days' vacation and placing him on dismissal probation.
119. Gamble in rendering his decision states unequivocally that the 4th Amendment does not apply to the NYPD department trial.
120. The office of Police Commissioner Dermot Shea approves the finding of Gamble on February 19, 2021.
121. This act by Commissioner Shea rubber stamps the unlawful actions taken by the Defendants herein and is indicative of a larger pattern and policy of unlawful policing.
122. At no times herein did the Defendants have a warrant to enter Plaintiff's residence.

123. At no times herein, did exigent circumstances exist to justify the Defendants herein entering the premises of Plaintiff.
124. As a direct and proximate result of defendants' actions, plaintiffs suffered and continue to suffer injuries, including but not limited to emotional distress, nightmares, anxiety, insomnia panic attacks, mental anguish and unwarranted severe anger bouts some or all of which may be permanent.
125. As a direct and proximate result of defendants' actions, plaintiffs suffered and continue to suffer, mental anguish, repetitive injury, psychological and emotional distress, and physical pain and suffering, some or all of which may be permanent.
126. As a direct and proximate result of defendants' actions, plaintiffs were deprived of rights, privileges and immunities under the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the City of New York and the State of New York.
127. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline officers including the defendants in this case, for violations of the constitutional rights of citizens, thereby causing police officers including defendants in this case, to engage in unlawful conduct.
128. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to sanction or discipline officers including the defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other officers thereby causing and encouraging officers including defendants in this case, to engage in unlawful conduct.

129. Defendant City of New York, as a matter of policy and practice, conceals reports of violence and other constitutional violations of inmates by other officers thereby causing and encouraging officers including defendants in this case, to engage in unlawful conduct.
130. The actions of defendants, acting under color of State law, deprived plaintiffs of their rights, privileges and immunities under the laws and Constitution of the United States; in particular, the rights to be secure in their person and property, to be free from the excessive use of force and from malicious prosecution, abuse of process, and the right to due process.
131. By these actions, defendants have deprived plaintiffs of rights secured by the First, Fourth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983.

AS A FIRST CAUSE OF ACTION:
42 U.S.C Section 1983-against All Defendants

132. Plaintiff hereby restates all paragraphs above of this complaint, as though fully set forth below
133. By unlawfully arresting Plaintiff without justification, probable cause or reasonable suspicion, the Officers, Defendants deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the First, Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.
134. In addition, the Defendants officers conspired among themselves to deprive plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the

- Fourth, Fifth, Eighth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
135. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.
136. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A SECOND CAUSE OF ACTION:

New York State Constitution, Art. 1 Section 12

137. Plaintiff hereby restates all paragraphs of this complaint, as though fully set forth below.
138. By unlawfully arresting plaintiff, without probable cause or reasonable suspicion, the Defendant Officers deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.
139. In addition, the Defendant Officers conspired among themselves to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as

set forth above.

140. The Defendants Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of his constitutional rights secured by Article 1, Section 12 of the New York Constitution.
141. Defendants, their officers, attorneys, agents, servants and employees were responsible for Plaintiff's deprivation of his state constitutional rights. Defendant City, as employer of each of the Officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
142. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before alleged.

AS A THIRD CAUSE OF ACTION:

**AGAINST THE DEFENDANT CITY OF NEW YORK: MUNICIPAL LIABILITY
UNDER 42 U.S.C § 1983**

143. By this reference, plaintiff incorporates each and every preceding allegation of this complaint as though fully set forth herein.
144. The defendant officers arrested and incarcerated the plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize the plaintiff's liberty, well-being, safety and constitutional rights.

145. The acts complained of were carried out by the individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
146. The defendant officers acted under color of law, in their official capacity, and their acts were performed pursuant to the customs, policies, usages, practices, procedures and rules of the City of New York and its police department.
147. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and its police department include, but are not limited to the following unconstitutional practices:
- a. Wrongfully arresting individuals on the pretext that they are engaged in illegal or criminal conduct;
 - b. manufacturing evidence against individuals allegedly involved in illegal or criminal conduct;
 - c. unlawfully searching detainees and/or their property in the absence of any reasonable suspicion that said individuals were concealing weapons or contraband;
 - d. arresting innocent persons in order to meet "productivity" goals (i.e. arrest quotas); and
 - e. wrongfully and unreasonably brutalizing innocent members of the public, despite the lack of probable cause to do so.
148. The aforesaid event was not an isolated incident. The City and its police commissioner has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings

- suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City and its police commissioner have allowed policies and practices that allow the aforementioned to persist.
149. For example, the well documented failures of the Civilian Complaint Review Board (“the CCRB”), a City agency, to substantiate obviously meritorious citizen complaints have gone uncorrected. The CCRB regularly finds complainants lack credibility based on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to them. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers’ misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.
150. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare

event, such as the matter at bar, that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which has been done on many occasions.

151. Further, the City and its police commissioner have no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected.
152. Additionally, according to a report of the New York City Bar Association issued in 2000, the City has isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have no impact on the officers' careers, regardless of the outcome of the civil actions. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a "a total disconnect" between the settlements of even substantial civil claims and police department action against officers.
153. The existence of the aforesaid unconstitutional customs and policies may also be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that commanders are permitted to set "productivity goals".
154. Furthermore, the existence of the aforesaid unconstitutional customs and policies may also be inferred from the ruling (Docket entry 32) of the Court (Eastern District of New York), in the case(s) of Jose Colon v. City of New York, et al (09-cv-8) and Maximo Colon v. City of New York, et al (09-cv-9), wherein the Court stated, inter

- alia, that "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting officers of the New York City Police Department", and that "there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving the illegal conduct of the kind now charged".
155. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, constituted a deliberate indifference to the safety, well-being and constitutional rights of all defendants, including but not limited to the plaintiff; were the proximate cause of, and moving force behind, the constitutional violations suffered by the plaintiff as alleged herein, and deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:
156. The right of the plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.
- (a) The right of the plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.
 - (b) The right to be free from unreasonable detention and/or continued detention without probable cause in that the plaintiff was detained.
 - (c) The right to be free from the use of excessive force.

157. As a result of the actions of the defendants, the plaintiff was deprived of his rights, privileges, and immunities secured by the United States Constitution, in particular, the Fourth, Fifth, and Fourteenth Amendments, in contravention of 42 USC §1983 and the laws of New York State, and New York City without just or legal cause when defendant City, by its employees and/or agents unlawfully arrested and imprisoned the plaintiff thereby depriving him of his liberty without due process of law.
158. The defendant officers were the actual agents of the defendant City of New York and were following the customs, practices, ordinances and/or regulations of the City of New York when they violated the plaintiff's constitutional and civil rights, and the City of New York is therefore responsible for their acts, and liable to the plaintiff for the damages he suffered. The actual principal/agent relationship between defendant City and the defendant officers was created by the fact they were employees of defendant City, and the City had the right to, and it did indeed regulate and control the activities and conduct of the defendant officers.
159. The defendant officers' actions were vicious, wicked, cold- hearted, intentional, malicious, unwarranted and in violation of the law. The individual defendants had full knowledge that the charges made before the Court against the plaintiff were false and untrue.

JURY TRIAL

160. Plaintiff demands a trial by jury of all issues in this action that are so triable.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully request that the Court:

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VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)

I, the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm;

That I am the attorney of record for the Plaintiff in the within matter and make this affirmation in accordance with CPLR 3020. I have read the within Summons and Verified Complaint and know the contents thereof to be true to your affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon information and belief. Your affirmant bases his belief regarding those matters upon the contents of the file and conversation with the Plaintiff.

This verification is made by your affirmant and not by the Plaintiff for the following reason; Plaintiff resides in a different County than where your affirmant maintains an office.

Dated: New York, New York

February 22, 2021

_____/s/_____
John Scola